

U.P. Information and Public Relations Department (Headquarter) Ministerial Service Rules, 1992

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State of Uttar Pradesh - Act

U.P. Information and Public Relations Department (Headquarter) Ministerial Service Rules, 1992

UTTAR PRADESH

India

U.P. Information and Public Relations Department (Headquarter) Ministerial Service Rules, 1992

Rule

U-P-INFORMATION-AND-PUBLIC-RELATIONS-DEPARTMENT-HEADQUARTER-MINISTERIAL-SERVICE-RULES-19
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U.P. Information and Public Relations Department (Headquarter) Ministerial Service Rules, 1992

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dated 30th April, 1983

Part I ? General

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Information and Public Relations Department (Headquarters) Ministerial Service Rules, 1982.

(2)

They shall come into force at once.

2.

Status of the service.

- The Uttar Pradesh Information and Public Relations Department (Headquarters) Ministerial Service comprises Group 'C' posts.

3.

Definitions.

- In these rules unless there is anything repugnant in the subject or context,-

(a)

"Appointing authority" means the Director, Information and Public Relations Department, Uttar Pradesh;

(b)

"Citizen of India" means a person who is or is deemed to be a citizen of India under part II of the Constitution;

(c)

"Constitution" means the Constitution of India;

(d)

"Director" means the Director, Information and Public Relations Department, Uttar Pradesh;

(e)

"Directorate" means the office of the Director, Information and Public Relations Department, Uttar Pradesh at Headquarters of the Government;

(f)

"Government" means the State Government of Uttar Pradesh;

(g)

"Governor" means the governor of Uttar Pradesh;

(h)

"Member of the service" means a person substantively appointed under these rules or the rules or orders in force prior to the commencement of these rules to a post in the cadre of the service;

(i)

"Secretary" means the Secretary to Government, Uttar Pradesh, Information Department;

(j)

"Service" means the Uttar Pradesh Information and Public Relations Department (Headquarters) Ministerial Service;

(k)

"Substantive appointment" means an appointment not being an ad hoc appointment, on a post in the cadre of the service made after selection in accordance with the rules and, if there are no rules, in accordance with the procedure prescribed for the time being by executive instructions, issued by the Government;

(l)

"Year of recruitment" means a period of twelve months commencing from the first day of July of a calendar year

Part II ? Cadre

4.

Cadre of service.

(1)

The strength of the service and of each category of posts therein shall be such as may be determined by the Government from time to time.

(2)

The strength of the service and of each category of posts therein shall, until orders varying the same are passed under sub-rule (1), be as given in the Appendix "A":

Provided that-

(i)

the appointing authority may leave unfilled or the Governor may hold in abeyance any vacant post, without thereby

entitling any person to compensation; and

(ii)
the Governor may create such additional permanent or temporary posts as he may consider proper.

Part III ? Recruitment

5.

Source of recruitment.

- Recruitment to the various categories of posts in the service shall be made from the following sources :

(i)

Category "A" posts-

(a) Assistant Superintendent

By promotion from amongst permanent incumbents
of the posts mentioned in category 'C' of Appendix 'A' who have
put in atleast 5 years permanent service in category 'C'.

(b) Superintendent

By promotion from amongst permanent Assistant
Superintendents and incumbents of the posts mentioned in category
'C' of Appendix 'A' who have put in atleast 10 years permanent
service in category 'C'.

(ii)

Category "B" Posts-

Stenographer/Stenographer Information Centre.

By direct recruitment.

(iii)

Category "C" Posts-

(a) Upper Division Assistant

By promotion from amongst permanent incumbents
of posts under category 'D' and such of the posts under category
'E' as have put in at least 5 years' service as such.

(b) Accountant

(c) Reference Clerks

(iv)

Category "D" Posts-

(a) Cashier

By promotion from amongst incumbents of the posts under
category 'E'.

(b) Radio Store Assistant

(c) Sales Assistant

(v)

Category "E" Posts-

(a) Lower Division Assistant

(i) Nine percent vacancies by
direct recruitment.

(ii) Ten percent vacancies by promotion from
amongst permanent incumbents of category 'F' posts and such Group
'D' employees; as have passed at least High School Examination of
the U. P. Board of High School and Intermediate Education.

(b) Radio Store Clerk

(c) Clerk

(d) Bundle Lifter

(e) Copy Writer

(f) Radio Clerk

- (g) Teleprinter Attendant
- (h) Newspaper Assistant
- (i) Lady Attendant
- (j) Clerk-cum-Store Keeper
- (k) Store Keeper
- (l) Clerk-cum-Accountant
- (m) Clerk
- (n) Library Assistant
- (o) Typist
- (vi)

Category "F" Posts-

- (a) Railway Parcel Attendant.

By direct recruitment.

- (b) Copy Holder.

6.

Reservation.

- Reservation for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories shall be in accordance with the orders of the Government in force at the time of the recruitment.

Part IV ? Qualifications

7.

Nationality.

- A candidate for direct recruitment to a post in the service must be-

- (a)

a citizen of India; or

- (b)

a Tibetan refugee who came over to India before 1st January, 1962 with the intention of permanently settling in India; or

- (c)

a person of Indian origin who has migrated from Pakistan, Burma, Sri Lanka or any of the East African countries of Kenya, Uganda and United Republic of Tanzania (formerly Tanganyika and Zanzibar) with the intention of permanently settling in India:

Provided that a candidate belonging to category (b) or (c) above must be a person in whose favour a certificate of eligibility has been issued by the State Government:

Provided further that a candidate belonging to category (b) will also be required to obtain a certificate of eligibility granted by the Deputy Inspector General of Police, Intelligence Branch, Uttar Pradesh :

Provided also that if a candidate belongs to category (c) above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in service beyond a period of one year shall be subject to his acquiring Indian citizenship.

Note.-A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused, may be admitted to an examination or interview and he may also be provisionally appointed subject to the necessary certificate being obtained by him or issued in his favour.

8.

Academic qualification.

- A candidate for direct recruitment to the various posts in categories 'B', 'E' and 'F' must possess the following qualifications:

Essential:

Category "B"

...

1. Must have passed the Intermediate Examination

of the Board of High School and Intermediate Education Uttar Pradesh or an Examination recognized by the Government as equivalent thereto.

2. Must have minimum speed of 80 words and 25 words per minute in Hindi Shorthand and Type Writing respectively.

Preferential:

Knowledge of English Shorthand and Typewriting.

Category "E"

...

Must have the qualifications as prescribed in the Subordinate Offices Ministerial Staff (Direct Recruitment) Rules, 1975.

Category "F"

...

Must have passed the High School Examination of the Board of High School and Intermediate Education, Uttar Pradesh or an Examination recognized by the Government as equivalent thereto.

9.

Preferential qualification.

- A candidate who has-

(a)

served in the Territorial Army for a minimum period of two years; or

(b)

obtained a 'B' certificate of National Cadet Corps,

shall, other things being equal, be given preference in the matter of direct recruitment.

10.

Age.

- A candidate for direct recruitment to the posts mentioned in category 'B' and 'F' of Appendix "A" must have attained the age as prescribed in the Subordinate Offices Ministerial Staff (Direct Recruitment) Rules, 1975 :

Provided that the Upper age limit in the case of candidates belonging to Scheduled Castes and Scheduled Tribes and such other categories as may be notified by the Government from time to time shall be greater by such number of years as may be specified.

11.

Character.

- The character of a candidate for direct recruitment to a post in the service must be such as to render him suitable in all respects for employment in Government service. The appointing authority shall satisfy itself on this point.

Note.-Persons dismissed by the Union Government or by a State Government or by a Local Authority or a Corporation owned or controlled by the Union Government, or a State Government shall be ineligible for appointment to any post in the service. Persons convicted of an offence involving moral turpitude shall also be ineligible.

12.

Marital status.

- A male candidate who has more than one wife living or a female candidate who has married a man already having a wife living, shall not be eligible for appointment:

Provided that the Government may, if satisfied that there exist special grounds for doing so, exempt any person from the operation of this rule.

13.

Physical fitness.

- No person shall be appointed to a post in the service unless he be in good mental and bodily health and free from any physical defect likely to interfere with the efficient performance of his duties. Before a candidate is finally approved for appointment, he shall be required to produce a Medical Certificate of fitness in accordance with the rules framed under Fundamental Rule 10 contained in Chapter III of the Financial Handbook, Volume II, Part III:

Provided that a Medical Certificate of fitness shall not be required from a candidate recruited by promotion.

Part V

Procedure for Recruitment

14.

Determination of vacancies.

- The appointing authority shall determine and notify the Employment Exchange in accordance with the rules and orders for the time being in force, the number of vacancies in the posts mentioned in Rule 5 (ii), 5 (v) and 5 (vi) to be filled during the course of the years as also the number of vacancies to be reserved for candidates belonging to Scheduled Castes, Scheduled Tribes and other categories under Rule 6.

15.

Procedure for direct recruitment to the post of Copy Holder and Railway Parcel Attendant.

(1)

For the purpose of recruitment there shall be constituted a Selection Committee comprising :

(1)

The appointing authority;

(2)

Two other officers not below the rank of;

(3)

Deputy Director, to be nominated by the appointing author;

(2)

The Selection Committee shall scrutinize the applications and require the eligible candidates to appear in an interview.

(3)

The Selection Committee shall prepare a list of candidates in order of merit, as disclosed by the marks obtained in the interview. If two or more candidates obtain equal marks, the Selection Committee shall arrange their names in order of merit on the basis of their general suitability for the post. The number of names in the list shall be larger (but not larger by more than 25 percent) than the number of vacancies.

16.

Procedure for direct recruitment to the posts mentioned in Rule 5 (v) of Category 'E'.

- Recruitment to the posts mentioned in Rule 5 (v), category 'E' shall be made in accordance with the procedure laid down in the Subordinate Offices Ministerial Staff (Direct Recruitment) Rules, 1975, as amended from time to time.

17.

Procedure for direct recruitment to the posts mentioned in Rule 5 (ii), Category 'B'.

(1)

Recruitment shall be made through the Selection Committee constituted under Rule 15 (1).

(2)

The Selection Committee shall scrutinize the applications and require the eligible candidates to appear in a competitive test and interview.

Note.-The Syllabus and procedure for competitive examination is given in Appendix "B".

(3)

After the marks obtained by the candidates in the written test have been tabulated, the Selection Committee shall, having regard to the need for securing due representation of the candidate belonging to Scheduled Castes, Scheduled Tribes and other categories in accordance with Rule 6, call for interview such number of candidates, as on the result of the written examination, have come to the standard fixed by the Committee in this respect. The marks awarded to each candidate in the interview shall be added to the marks obtained by him in the written test.

(4)

The Selection Committee shall prepare a list of candidates in order of merit, as disclosed by aggregate of marks obtained by them in the written test and interview. If two or more candidates obtain equal marks, the candidate obtaining higher marks in the written test shall be placed higher. The number of names in the list shall be larger (but not larger by more than 25 percent) than the number of vacancies.

18.

Procedure for recruitment by promotion to the posts mentioned in rule 5 (i), Category 'A', 5 (iii), Category 'C', 5 (iv), Category 'D'.

(1)

Recruitment by promotion shall be made on the basis of seniority subject to rejection of the unfit through the Selection Committee constituted under Rule 15 (1).

(2)

The appointing authority shall prepare an eligibility list of the candidates, arranged in order of seniority and place it before the Selection Committee along with their Character Rolls and such other record, pertaining to them, as may be considered proper.

(3)

The Selection Committee shall consider the cases of candidates on the basis of the records referred in sub-rule (2) and, if it considers necessary, it may interview the candidates also.

(4)

The Selection Committee shall prepare a list of selected candidates arranged in order of seniority and forward the same to the appointing authority.

19.

Combined select list.

- If in any year of recruitment appointments are made both by direct recruitment and by promotion, a combined select list shall be prepared by taking the names of candidates from the relevant lists in such manner that the prescribed percentage is maintained, the first name in the list being of the persons appointed by promotion.

Part VI

Appointment, Probation, Confirmation And Seniority

20.

Appointment.

(1)

Subject to the provisions of sub-rule (2) the appointing authority shall make appointment by taking the names of candidates in the order in which they stand in the lists prepared under Rule 15, 16, 17, 18 or 19, as the case may be.

(2)

Where, in any year of recruitment, appointments are to be made both by direct recruitment and by promotion, regular appointments shall not be made unless selections are made from both the sources and a combined list is prepared in accordance with Rule 19.

(3)

If more than one order of appointment are issued in respect of any one selection, a combined order shall also be issued, mentioning the names of the persons in order of seniority as determined in the selection or, as the case may be, as it stood in the cadre from which they are promoted. If the appointments are made both by direct recruitment and by promotion, names shall be arranged in accordance with the list prepared under Rule 19.

(4)

The appointing authority make appointments in temporary of officiating capacity also from the list prepared under sub-rule (1). If no candidate borne on these lists, is available, he may make appointments in such vacancy from amongst eligible for appointments under these rules. Such appointments shall not last for a period exceeding one year or beyond the next selection under these rules, whichever be earlier.

21.

Probation.

(1)

A person on appointment to a post in the service in or against a permanent vacancy shall be placed on probation for a period of two years.

(2)

The appointing authority may, for reasons to be recorded, extend the period of probation in individual cases specifying the exact date upto which the extension is granted :

Provided that, save in exceptional circumstances, the period of probation shall not be extended beyond one year and in no circumstance beyond two years.

(3)

If it appears to the appointing authority at any time during or at the end of the period of probation or extended period of

probation that a probationer has not made sufficient use of his opportunities or has otherwise failed to give satisfaction, he may be reverted to his substantive post, if any, and if he does not hold a lien on any post, his services may be dispensed with.

(4)

A probationer who is reverted or whose services are dispensed with under sub-rule (3), shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service rendered in an officiating or temporary capacity in a post included in the cadre or any other equivalent or higher post, to be taken into account for the purpose of computing the period of probation.

22.

Confirmation.

- A probationer shall be confirmed in his appointment at the end of the period of probation or the extended period of probation, if-

(1)

his work and conduct are found to be satisfactory;

(2)

his integrity is certified; and

(3)

the appointing authority is satisfied that he is otherwise fit for confirmation.

23.

Seniority.

(1)

Except as hereinafter provided, the seniority of persons in any category of posts shall be determined from the date of the order of substantive appointment and if two or more persons are appointed together, by the order in which their names are arranged in the appointment order ;

Provided that if the appointment order specifies as a particular back date with effect from which a person is substantively appointed, that date will be deemed to be the date of order of substantive appointment and in other cases, it will mean the date of issue of the order :

Provided further that, if more than one order of appointment are issued in respect of any one selection the seniority shall be as mentioned in the combined order of appointment issued under sub-rule (3) of Rule 20.

(2)

The seniority inter se of persons appointed directly on the result of any one selection shall be the same as determined by the Selection Committee :

Provided that a candidate recruited directly may lose his seniority if he fails to join without valid reasons when vacancy is offered to him. The decision of the appointing authority as to the validity of reasons shall be final.

(3)

The seniority inter se of persons appointed by promotion shall be the same as it was in the cadre from which they were promoted.

(4)

Where appointments are made both by promotion and direct recruitment or from more than one source and the respective quota of the sources is prescribed the inter se seniority shall be determined by arranging the names in accordance with Rule 19, in such manner so that the prescribed percentage is maintained :

Provided that-

(i)

where appointments from any source are made in excess of the prescribed quota, the persons appointed in excess of quota shall be pushed down, for seniority, to subsequent year or years in which there are vacancies in accordance with the quota;

(ii)

where appointments from any source fall short of the prescribed quota and appointments against such unfilled vacancies are made in subsequent year or years the persons so appointed shall get the seniority of the year in which

their appointments are made, so, however, that in the combined list of that year, to be prepared under this rule, their names shall be placed at the top followed by the names, in the cyclic order, of the other appointees;

(iii)

Where, in accordance with the rules or prescribed procedure, the unfilled vacancies from any source could, in the circumstances mentioned in the relevant rule or procedure, be filled from the other source and appointments in excess of quota are so made, the persons so appointed shall get the seniority of that very year as if they are appointed against the vacancies of their quota.

Part VII

Pay, Etc.

24.

Scales of Pay.

(1)

The scales of pay admissible to persons appointed to various categories-of post in the service, whether in a substantive or officiating capacity or as a temporary measure shall be such as may be determined by the Government from time to time.

(2)

The scales of pay in force at the commencement of these rules are given in Appendix "A".

25.

Pay during probation.

(1)

Notwithstanding any provision in the Fundamental Rules to the contrary, a person on probation, if he is not already in permanent Government Service, shall be allowed his first increment in the time scale when he has completed one year of satisfactory service and second increment after two years' service when he has completed the probationary period and is also confirmed :

Provided that if the period of probation is extended on account of failure to give satisfaction, such extension shall not count for increment unless the appointing authority directs otherwise.

(2)

The pay during probation of a person who was already holding a post under the Government shall be regulated by relevant Fundamental Rules :

Provided that if the period of probation is extended on account of failure to give satisfaction, such extension shall not count for increment unless the appointing authority directs otherwise.

(3)

The pay during probation of a person already in permanent Government service shall be regulated by the relevant rules, applicable to Government servants generally serving in connection with the affairs of the State.

26.

Criteria for crossing efficiency bar.

(1)

No Superintendent shall be allowed to cross the efficiency bar unless he has worked diligently and to the best of his ability, his work and conduct are found to be satisfactory and unless his integrity is certified.

(2)

A person not covered by sub-rule (1) shall not be allowed to cross-

(i)

the first efficiency bar unless his work and conduct are found to be satisfactory and unless his integrity is certified;

(ii)

the second efficiency bar unless he has worked diligently and to the best of his ability, his work and conduct are found to be satisfactory and unless his integrity is certified.

Part VIII ? Other Provisions

27.

Canvassing.

- No recommendation, either written or oral, other than those required under these rules applicable to the post or service will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his

candidature will disqualify him for appointment.

28.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules or, by special orders, persons appointed to the service shall be governed by the rules, regulations and orders applicable generally to Government servants serving in connection with the affairs of the State.

29.

Relaxation from the conditions of service.

- Where the State Government is satisfied that the operation of any rule regulating the conditions of service of persons appointed to the service causes undue hardship in any particular case, it may, notwithstanding anything contained in the rules applicable to the case, by order dispense with or relax the requirements of that rule to such extent the subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner.

30.

Savings.

- Nothing in these rules shall affect reservations and other concessions required to be provided for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other special categories of persons in accordance with the order issued by the Government from time to time in this regard.

Appendix A

Strength of the Ministerial Staff and the sanctioned scales of pay

Designation of the post

Scale of pay

No. of post

Permanent

Temporary

1

2

3

4

Category "A"

Rs.

1.

Superintendents

Rs.

625-30-835-E.B.-30-925-35-1065-E.B.-35-1240-E.B.-40-1360

5

2

2.

Assistant Superintendent

515-15-590-18-626-E.B.-18-680-20-780-E.B.-20-860

1

-

Category "B"

1.

Stenographers

(1)

570-25-770-E.B.-30-980-E.B.-30-1100

(2)

515-15-590-18-626-E.B.-18-680-20-780-E.B.-20-860

9

-

2.

Stenographer Information Centre

470-15-575-E.B.-15-650-17-701-E.B.-17-735

1

-

Category "C"

1.

Upper Division Assistant

515-15-590-18-626-E.B.-18-680-20-780-E.B.-20-860

33

4

2.

Accountants

470-15-575-E.B.-15-650-17-701-E.B.-17-735

8

1

3.

Reference Clerks

515-15-590-18-626-E.

B.-18-680-20-780-E.B.-20-860

7

-

Category "D"

1.

Radio Store Assistant

430-12-490-15-520-E.B.-15-640-E.B.-15-685

1

-

2.

Scales Assistant

Ditto.

1

-

3.

Cashier

Ditto.

1

-

Category "E"

1.

Clerks-cum-Storekeeper

354-10-424-E.B.-10-454-12-514-E.B.-12-550

2

-

2.

Storekeeper

Ditto.

3

-

3.

Clerk

Ditto.

1

-

4.

Lower Division Assistant

Ditto.

56

5.

Bundle Lifter

Ditto.

2

-

6.

Copy Writer

354-10-424-E.B.-10-454-12-514-E.B.-12-550

1

-

7.

Radio Clerk

Ditto.

1

-

8.

Lady Attendant

Ditto.

1

-

9.

Radio Store Clerk

Ditto.

1

-

10.

Teleprinter Attendant

Ditto.

1

-

11.

Clerk-cwm-Accountant

Ditto.

1

-

12.

Clerk Who's who

Ditto.

1

-

13.

News-Paper Assistant

Ditto.

1

-

14.

Library Assistant

Ditto.

1

3

15.

Typist

Ditto.

3

3

Category "F"

1.

Railway Parcel Attendant

330-7-365-8-381-E.B.-8-405-9-450-E.B.-9-495

1

-

2.

Copy Holder

Ditto.

1

-

Note.-Posts under each of the categories 'C', 'D' and 'E' are interchangeable with any other post in the same category and the post under the same category constitute one cadre.

Appendix B

Syllabus for examination for the post of Stenographer

The examination will consist of-

(i)

a test in Stenography;

(ii)

a short test in Hindi/English Composition :

(a)

The test in Stenography will consist of a dictation of a passage in Hindi/English per five minutes at the rate of 80 words per minute. One hour will be allowed for transcribing and typing the shorthand record of the dictation. The passage will be selected with a view to testing the candidates not only in their speed in Stenography, but also in their knowledge of good and idiomatic Hindi/English. No candidate will be considered to have qualified for employment whose percentages of errors in the exceeds five.

(b)

The test in Hindi/English Composition will consist of a written examination for which one hour will be allowed and candidates will be required to write a letter or a short essay on a subject of general interest.

(c)

The marks allotted to each of the above tests shall be equal.

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